

Before the Verdict

She had been selected for the jury. She had not expected it to change what she thought about certainty.

CEFR Level B2

Book 3 of 10 • Legal Drama / Moral Philosophy • Adult Graded Reader Series

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About This Book

Setting: A courtroom in London. A juror's room. One woman's flat at night.

Genre: Legal Drama / Moral Philosophy

Characters

- Anna — 44. An actuary. Professionally trained to quantify risk and uncertainty.
- The defendant — Marcus Webb, 31. Accused of causing death by dangerous driving.
- The foreman — an accountant who wants the deliberations to be orderly.
- The evidence — contested, fragmentary, insufficient in ways that trouble Anna.

BEFORE THE VERDICT

Page 1 — Selection

She had been selected on a Tuesday, having not, in truth, done everything available to her to avoid being selected.

There were standard strategies — a friend who was a solicitor had outlined them over dinner some months ago, in the casual way lawyers discuss the engineering of inconveniences. Anna had listened with the part of her attention she directed at things she might conceivably need.

On the day, she had answered the questions honestly, which was what had got her selected.

She was an actuary. The defence counsel had looked at her with the expression of someone who had been given something ambiguous and had not yet decided what to do with it.

Vocabulary Support

actuary	aktüer, sigorta matematiği uzmanı
inconveniences	rahatsızlıklar
conceivably	akla yatkın biçimde
defence counsel	savunma avukatı
ambiguous	belirsiz
outlined	ana hatlarıyla anlattı

She answered honestly. That was what got her selected. She notes this about herself.

Page 2 — The Case

Marcus Webb was charged with causing the death of a cyclist by dangerous driving.

The facts, as they were presented, were broadly agreed upon: on a wet November evening, his car had struck a cyclist at a junction. The cyclist — a thirty-four-year-old woman named Priya Malik, a nurse, mother of two — had died at the scene.

What was contested was the question of dangerous driving. The prosecution argued that Webb had been travelling significantly above the speed limit and had failed to respond to road conditions. The defence argued that the junction had been ambiguously marked, that the cyclist had not been visible, and that the speed differential, while present, had been within ranges that made the incident a tragic accident rather than a criminal act.

Anna had listened to the opening arguments with the professional attention she brought to mortality tables.

Vocabulary Support

charged with	... ile suçlanmak
contested	tartışmalı
speed differential	hız farkı
ambiguously marked	belirsiz şekilde işaretlenmiş

mortality tables	ölüm tabloları
prosecution	savcılık

A contested question. Not the fact of the death but the classification of the act. This is the problem.

Page 3 — The Evidence

Anna had, by the end of the second week, assembled in her notebook a precise summary of what the evidence established and what it did not.

What it established: Webb had been driving. There had been a collision. The cyclist had died.

What it did not establish with the certainty the prosecution claimed: the exact speed, the exact visibility conditions, the exact decision sequence in the seconds before impact.

The prosecution's expert witness had given a speed estimate based on the physical evidence. The defence expert had given a different estimate based on the same evidence. The difference between the estimates was eleven miles per hour.

Anna was professionally accustomed to uncertainty. She was not professionally accustomed to being asked to resolve it in a way that would determine a man's imprisonment.

Vocabulary Support

decision sequence	karar sırası
estimate	tahmin
physical evidence	fiziksel kanıt
imprisonment	hapis

assembled	derledi
established	belirlendi

Eleven miles per hour between the estimates. Her verdict will depend on which expert she believes.

Page 4 — The Foreman

The foreman — a man named Geoffrey, an accountant, with the organised quality of someone who had spent decades managing other people's numbers — had, by the end of the second week, established a set of deliberation protocols that Anna found simultaneously sensible and insufficient.

The protocols were sensible because they imposed structure on a process that could, without structure, become chaotic.

They were insufficient because Geoffrey's understanding of what a verdict required was, Anna believed, fundamentally different from her own.

Geoffrey understood a verdict as a conclusion reached through process. Anna understood it as a probability estimate reached through evidence — and she had become, over the course of the trial, increasingly uncomfortable with the gap between those two things.

Vocabulary Support

protocols	protokoller
deliberation	müzakere
simultaneously	eş zamanlı olarak
probability estimate	olasılık tahmini
chaotic	kaotik

fundamentally different

temel olarak farklı

A conclusion through process vs a probability estimate through evidence. Different things entirely.

Page 5 — The Night Before

The night before the jury was to begin deliberating, Anna sat at her kitchen table with a glass of wine she had not touched and her notebook open.

She had spent the evening doing what she did with complex risk assessments: reducing the question to its components, assigning probability ranges, testing the sensitivity of the conclusion to each component's uncertainty.

The exercise was, she recognised, not how juries were supposed to operate. Juries were supposed to apply the standard of beyond reasonable doubt — a standard that was, in its formulation, deliberately resistant to quantification.

But Anna was an actuary. Everything that could be quantified, she quantified. And she had arrived at a number that disturbed her.

Vocabulary Support

sensitivity analysis	duyarlılık analizi
formulation	formülasyon
resistant to quantification	ölçüme dirençli
reasonable doubt	makul şüphe
components	bileşenler
deliberately	kasıtlı olarak

She quantified it. She arrived at a number. The number disturbed her.

Page 6 — The Number

The number was sixty-eight per cent.

That was, by her calculation, the probability that Webb had been driving at a speed that constituted dangerous driving by the legal standard.

Sixty-eight per cent was, in the actuarial contexts she worked in, a high probability. It would routinely inform decisions about significant risk. It was the kind of number you built policy on.

It was not, however, beyond reasonable doubt. Beyond reasonable doubt was, by the academic consensus she had looked up the previous evening, generally considered to correspond to probabilities of ninety-five per cent or above.

She was thirty-two percentage points short.

She was, she thought, going to have to vote to acquit.

Vocabulary Support

actuarial	aktüeryal
constitute	oluşturmak
academic consensus	akademik uzlaş
acquit	beraat ettirmek
percentage points	yüzde puan
correspond to	... e karşılık gelmek

Sixty-eight per cent. Thirty-two points short of beyond reasonable doubt. She will vote to acquit.

Page 7 — The Deliberation

The deliberation took two days.

Anna had expected it to take longer — had, in a sense, feared that it would take longer and that she would have to spend more time in a room with eleven people who were approaching the same question from different angles.

The jury, it turned out, was divided: eight for guilty, three for not guilty, with Anna's position as the twelfth being the variable that would determine the direction of movement.

She had thought, before entering the deliberation, that she knew what she would say.

She had not anticipated Geoffrey.

Geoffrey had said, on the first afternoon: 'I think we all know he did it. The question is whether we can say so.' Anna had looked at him. 'That,' she said, 'is precisely the wrong question.'

Vocabulary Support

deliberation	müzakere
variable	değişken
anticipate	öngörmek
precisely	tam olarak
divided	bölünmüş

direction of movement	hareket yönü
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"I think we all know he did it." Anna says: that is precisely the wrong question.

Page 8 — Anna's Argument

She had spent several hours of the first deliberation day explaining, with the patience she brought to clients who were resistant to probabilistic thinking, why what Geoffrey had said was wrong.

The standard of beyond reasonable doubt was not, she argued, a social convention designed to produce particular outcomes. It was an epistemological commitment — a position on what kind of knowledge it was legitimate to act on when the consequence was imprisonment.

The question was not whether they believed he had done it. The question was whether the evidence was sufficient to make that belief qualify as knowledge of the relevant kind.

'You're saying we might be letting a dangerous driver go free,' Geoffrey said.

'I'm saying that if the evidence is insufficient, that is what the standard requires,' Anna said. 'The alternative is to have no standard.'

Vocabulary Support

epistemological	epistemolojik
legitimate	meşru
probabilistic thinking	olasılıksal düşünce

qualify as	... olarak nitelendirmek
commitment	taahhüt
insufficient	yetersiz

"The alternative is to have no standard." She is not being heartless. She is being principled.

Page 9 — The Other Jurors

The three who had initially voted not guilty were, she found, not persuaded by her argument in the way she had expected.

Two of them had formed their position on the basis of sympathy for Webb rather than analysis of the evidence — they did not believe he was a bad person, which was, Anna noted internally, not a relevant consideration.

The third — a retired teacher named Maria — had arrived at not guilty for reasons that were, on examination, close to Anna's own, though expressed differently.

Maria had said: 'I don't think they proved it well enough.' It was a less precise formulation than Anna's, but it was, she thought, pointing at the same thing.

They had found, across two days of deliberation, a language they could share.

Vocabulary Support

sympathy	sempati, acıma
relevant consideration	ilgili değerlendirme
formulation	formülasyon
pointing at	işaret etmek
internally	içsel olarak
initially	başlangıçta

*Different routes to the same place. A language they could share.
That is how a jury should work.*

Page 10 — The Verdict

The jury returned a verdict of not guilty on the morning of the third deliberation day.

The vote had been ten to two — eight of the original guilty votes having been moved by the cumulative weight of the two days' argument, which Anna preferred to attribute to the argument rather than to the exhaustion of the process, though she acknowledged to herself that the distinction might not be clean.

She watched Webb's face when the verdict was read.

He was, she thought, surprised. It was not the face of someone who had felt certain of acquittal.

She thought: I do not know whether he was driving dangerously. I know that the evidence did not establish it to the required standard. These are different things. I have acted on the second, not the first.

Vocabulary Support

cumulative weight	birikimli ağırlık
attribute to	... e atfetmek
acquittal	beraat
required standard	gerekli standart

exhaustion of process	sürecin tükenmesi
distinction	ayrım

I acted on what was established, not on what I believed. These are different things. She holds this.

She thought about Priya Malik on the train home.

Priya Malik had been thirty-four. A nurse. The mother of two children who were now six and nine. She had died at a junction on a wet November evening.

Anna had thought about Priya Malik throughout the trial — not obsessively, but persistently, in the way that the human stakes of an abstraction are always present alongside the abstraction.

She had not allowed those thoughts to influence her vote, because to have done so would have been to corrupt the epistemological function of the standard she had spent two days defending.

But she had those thoughts. She would continue to have them.

This, she had come to believe, was appropriate. The weight of consequence was part of the obligation.

Vocabulary Support

obsessively	obsesif biçimde
persistently	ısrarcı biçimde
human stakes	insani ağırlık
corrupt	bozmak, çarpıtmak
obligation	yükümlülük

appropriate	uygun
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She allowed the weight of it to remain with her. She did not allow it to corrupt the standard.

Page 12 — Geoffrey

Geoffrey had not spoken to her directly after the verdict.

This was, she assumed, because he had moved from the guilty camp and did not wish to perform satisfaction at having done so.

She had a degree of respect for this that she had not expected.

He had changed his position. He had done so in a context where doing so required a kind of intellectual honesty that not everyone was capable of in a room with eleven other people watching.

She had been, she realised in retrospect, more fortunate in her jury than she had allowed for.

'This could have gone differently,' she said to her husband that evening.

'It always could,' he said. 'That's why the standard matters.'

Vocabulary Support

camp	taraf, kamp
intellectual honesty	entelektüel dürüstlük
in retrospect	geriye dönük olarak
fortunate	şanslı
perform satisfaction	memnuniyet sergilemek

allowed for	hesaba katmıştı
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"That's why the standard matters." Her husband understood. She was more fortunate than she knew.

Page 13 — What She Thought Later

She had, in the weeks following the verdict, thought extensively about what the experience had changed in her.

She had been, for most of her professional life, someone who found comfort in quantification — in the belief that sufficient data, properly analysed, would yield a defensible answer.

The trial had not challenged this belief, exactly. What it had done was show her a situation in which the data was irreducibly insufficient — in which the gap between the evidence and the certainty that the law required was not a problem to be solved but a condition of the world.

She had voted in accordance with her principles.

She was not certain she had reached the right conclusion.

These two things, she had come to believe, were compatible.

Vocabulary Support

quantification	ölçümleme
irreducibly insufficient	indirgenemez biçimde yetersiz
defensible answer	savunulabilir yanıt
compatible	uyumlu

extensively	kapsamlı biçimde
in accordance with	... uygun olarak

Voted in accordance with principles. Not certain of the right conclusion. Compatible.

Page 14 — The Standard

She had tried, in a conversation with a colleague who was not a lawyer, to explain why she thought the standard of beyond reasonable doubt was important.

Her colleague had said: 'But surely what matters is whether he actually did it.'

Anna had thought about how to answer this.

She had said: 'The criminal justice system is not, primarily, a machine for identifying truth. It is a system for making decisions about the exercise of state power against individuals. The standard of beyond reasonable doubt is a constraint on that power — it says that the state may not imprison someone unless the evidence against them meets a very high threshold. Whether he actually did it is a separate question from whether the evidence established that he did.'

'That seems unsatisfying,' her colleague said.

'Yes,' Anna said. 'It is. That's the point of it.'

Vocabulary Support

threshold	eşik
constraint	kısıtlama
imprison	hapse atmak
exercise of state power	devlet gücünün kullanımı

unsatisfying	tatmin edici olmayan
primarily	esas olarak

"It is unsatisfying. That's the point of it." A constraint that is meant to be felt.

Page 15 — A Year Later

A year after the verdict, there was a brief news item about Marcus Webb.

He had been involved in a second incident — not a fatality, but a collision on a motorway that was being investigated. She read the item on her phone on the train, and then she put her phone away.

She thought: I do not know what this means about the original verdict.

She thought: if the original evidence had been sufficient, I would have voted differently, and then this second incident would not have happened in the way it happened. Or might not have.

She thought: I acted on what was established. The standard is the standard.

She thought all of this, and she did not feel better. She had not expected to.

Vocabulary Support

fatality	ölümlü olay
motorway	otoyol
investigated	soruşturuluyor
brief news item	kısa haber
feel better	kendini daha iyi hissetmek
acted on	... e dayanarak hareket etti

She does not feel better. She had not expected to. She acted correctly. Correctly does not always feel good.

Page 16 — What the Standard Does

She had been asked, by a lawyer friend over dinner, what she had concluded from serving on the jury.

She had said: 'The standard of beyond reasonable doubt does something that I had not fully appreciated before serving on it. It doesn't just protect defendants. It makes explicit that the justice system acknowledges its own fallibility. It says: we know that verdicts can be wrong. We would rather err on the side of acquittal than on the side of wrongful conviction.'

'Most people find that unsatisfying,' the lawyer said.

'I know,' Anna said. 'I find it honest. Honesty and satisfaction are not always the same.'

The lawyer had looked at her with an expression she had seen before.

It was the expression of a professional recognising another professional in a different field.

Vocabulary Support

fallibility	yanılabilirlik
wrongful conviction	haksız mahkumiyet
err on the side of	... tarafında hata yapmak
explicit	açık, net
acknowledges	kabul eder
recognising	tanımak

"Honesty and satisfaction are not always the same." She has learned this in the courtroom.

Page 17 — The Calculation

She had kept her notebook from the trial.

She had not read it since the verdict.

On the anniversary of the selection, she took it out.

She read through her notes — the evidence summaries, the probability estimates, the sensitivity analyses she had done the night before the deliberation.

She found, re-reading them, that she had been right to trust them.

Not right in the sense that the conclusion was certainly correct — she still did not know that.

Right in the sense that the method had been appropriate to the question.

She thought: I was trained for this. I did not know I was.

She put the notebook back. She went to work.

Vocabulary Support

anniversary	yıl dönümü
sensitivity analyses	duyarlılık analizleri
certainly correct	kesinlikle doğru
appropriate to	... e uygun
summaries	özetler

trained for

... için eğitilmiş

Trained for this without knowing it. The method was appropriate to the question. She goes back to work.

She had not stopped thinking about Priya Malik.

She had, in the months after the trial, thought about what it might mean to not stop thinking about someone you had never met, whose existence you had known only through the compressed and curated account of a legal proceeding.

What she arrived at was something she would not have been able to articulate before the trial: that Priya Malik had been a real person whose death had real consequences, and that the legal question of whether those consequences could be attributed to criminal negligence was related to but not identical with the moral question of what had happened.

The law had given her one answer. She was still thinking about the other.

Vocabulary Support

curated account	derlenmiş hesap
criminal negligence	cezai ihmal
compressed	sıkıştırılmış
articulate	dile getirmek
attributed to	... e atfedilen
identical with	... ile özdeş

The law gave one answer. The moral question is different. She is still thinking about it.

Page 19 — The Other Jurors

She had not kept in touch with any of the other jurors.

She had thought, in the immediate aftermath, that she might — there had been a quality of shared experience in the deliberation room that had felt, at the time, like the beginning of something.

But she had not acted on this, and neither, as far as she knew, had they.

This was, she had come to think, probably correct.

What they had shared was a specific task in specific circumstances, and the intimacy of that task was not transferable to other contexts.

She had been glad of them. She had learned from them.

She would not have been able to say what she had learned from any individual one of them without pausing to think.

That, she thought, was how most of the important things worked.

Vocabulary Support

aftermath	sonrasında
transferable	aktarılabılır
specific task	belirli görev

intimacy	yakınlık
kept in touch	iletişimde kalmak
individual	bireysel

Not transferable to other contexts. She was glad of them. She learned from them. That is how important things work.

Page 20 — Beyond Reasonable Doubt

She used the phrase, two years after the trial, in a presentation to actuarial trainees.

She was discussing the epistemological foundations of risk assessment — the question of what level of certainty was sufficient to act.

She said: 'In law, the standard for criminal conviction is beyond reasonable doubt — a threshold set deliberately high because the consequences of error fall on the individual. In actuarial work, we have analogous problems: what level of certainty justifies a product design, a pricing decision, a recommendation?'

'The parallel isn't perfect,' she said. 'But the underlying question is the same. What kind of certainty do you need, and for what purpose?'

She looked at the trainees.

'That question,' she said, 'is not answered in this presentation. It is answered in the work, and in the cases that go wrong, and in the years of practice. I am still answering it.'

Vocabulary Support

actuarial trainees	aktüerlik stajyerleri
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epistemological foundations	epistemolojik temeller
analogous	analojik, benzer
underlying question	altta yatan soru
pricing decision	fiyatlandırma kararı
parallel	paralel

"I am still answering it." Two years later. She will be answering it for the rest of her career.

ACTIVITIES

1. Vocabulary Practice — Match the Words

Match each word or phrase with the correct meaning.

Word / phrase	Meaning
1. actuary	A. beraat ettirmek
2. acquit	B. akt�er
3. epistemological	C. epistemolojik
4. fallibility	D. yanılabilirlik
5. reasonable doubt	E. makul ř�p�e
6. threshold	F. eřik
7. constraint	G. kısıtlama
8. analogous	H. analojik, benzer

2. Fill in the Blanks

Choose the correct word or phrase from the box.

**standard — probability — wrong — compatible —
unsatisfying — evidence**

1. Anna calculated a _____ of sixty-eight per cent — not sufficient for beyond reasonable doubt.
2. Beyond reasonable doubt is generally considered to correspond to ninety-five per cent or above — Anna was thirty-two points short, so she voted to acquit.

3. Anna argued that the justice system is a constraint on state power, not a machine for identifying _____.
4. Geoffrey said the question was whether they could say he did it — Anna said that was precisely the _____ question.
5. She voted in accordance with her principles and was not certain of the right conclusion — she came to believe these were _____.
6. She found the _____ of beyond reasonable doubt unsatisfying but honest — honesty and satisfaction are not always the same.

3. Comprehension Questions

True or False? Write T or F.

1. Anna took active steps to avoid being selected for jury duty. ____
2. The prosecution and defence experts agreed on the speed of the car. ____
3. Anna votes guilty because she believes Webb was probably speeding. ____
4. Geoffrey initially votes for not guilty. ____
5. The jury returns a verdict of not guilty. ____
6. A year later, Webb is involved in another collision. ____

Short Answer Questions

7. What is Anna's professional background, and how does it shape her approach to the evidence?
8. What is the key question the jury must decide, and why does Anna find it difficult?
9. What does Geoffrey mean when he says 'we all know he did it', and why does Anna find this wrong?
10. How does Anna explain the standard of beyond reasonable doubt to Geoffrey?
11. What role does Maria play in the deliberations?
12. Why does Anna not feel better after reading about Webb's second collision?
13. How does Anna distinguish between the legal and moral questions raised by Priya Malik's death?

14. What does Anna say to her actuarial trainees about the question of certainty?

15. What has the trial changed in Anna's understanding of her own professional work?

ANSWER KEY

(Alıştırmaları yaptıktan sonra bakınız.)

Match: 1-B 2-A 3-C 4-D 5-E 6-F 7-G 8-H

Fill in the Blanks: 1. probability 2. evidence 3. wrong 4. wrong 5. compatible 6. standard

True / False: 1. F 2. F 3. F 4. F 5. T 6. T

7. She is an actuary, trained to quantify risk and uncertainty. She applies probability estimates and sensitivity analyses to the evidence rather than making a qualitative judgement.

8. The key question is whether the driving constituted dangerous driving — i.e., whether the speed was significantly above the limit. This is difficult because the two expert witnesses give estimates that differ by eleven miles per hour.

9. Geoffrey confuses belief with proof — he is treating the question as whether they believe Webb did it, rather than whether the evidence establishes it to the required standard.

10. Beyond reasonable doubt is not a social convention but an epistemological commitment — a standard of knowledge required before the state can imprison someone. It is about what kind of evidence qualifies, not about what jurors believe.

11. She provides a less technical but pointing-in-the-same-direction version of Anna's argument — 'they didn't prove it well enough.' She and Anna find a shared language across different routes to the same conclusion.

12. She acted on what was established, not on what she believed — the standard does not change because of subsequent events. The standard was applied correctly; she cannot feel better about consequences she could not have predicted.

13. The legal question is whether criminal negligence can be attributed to Webb. The moral question of what happened — and who bears responsibility for Priya Malik's death — is related but not identical. The law gave one answer; Anna is still thinking about the other.

14. That the underlying question — what level of certainty is sufficient for what purpose — is not answered in a presentation, but in the work, in cases that go wrong, and in years of practice.

15. It showed her that some questions involve irreducibly insufficient data — where the gap is not a problem to be solved but a condition of the world. Acting in accordance with principles while remaining uncertain of the right conclusion are compatible states.